

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

DOCKET NO. 25-02

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC AGREEMENT No.011982); EVERGREEN MARINE CORPORATION (TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.; EVERGREEN MARINE (SINGAPORE) PTE. LTD.; AND YANG MING MARINE TRANSPORT CORPORATION, *Respondents*.

Served: May 15, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SECOND AMENDED SCHEDULING ORDER

On May 14, 2026, Complainant Nielsen & Bainbridge, LLC (“NBG”) and Respondents Evergreen Line Joint Service Agreement (FMC Agreement No. 011982); Evergreen Marine Corporation (Taiwan) Ltd.; Evergreen Marine (UK) Limited, Italia Maritima SpA; Evergreen Marine (Hong Kong) Ltd.; Evergreen Marine (SINGAPORE) Pte. Ltd. (collectively, “Evergreen”), and Yang Marine Transport Corporation (“Yang Ming”), filed a second joint motion to amend the discovery schedule and extend the remaining deadlines by 60-days. The last amended scheduling order issued on March 20, 2026, and extended the discovery deadlines by 30-days, with some dates modified to account for weekends or holidays. The parties submit that there is good cause to extend the schedule again for similar reasons: the amount of data produced is 5.6 million pages. Evergreen, which apparently had issues with its eDiscovery vendor and did not meet the May 1, 2026, deadline for substantial production, has produced over 1 million documents on a rolling basis, most between May 4, 2026, and May 8, 2026. The parties submit that they need more time to review the documents they’ve exchanged to adequately prepare for depositions, and while they have not stated how many they intend to take, they have intimated that it could be as many as 30.

While it is not clear what issues arose with Evergreen’s eDiscovery vendor that slowed production, I recognize that the volume it produced between May 4, 2026, and May 8, 2026, is substantial and warrants some extra time for the other parties to review. However, the due date for the initial decision is July 8, 2026, and even under the current amended scheduling order, the parties would not complete briefing until October 9, 2026. Extending all deadlines by two months would move briefing to the holiday season and the initial decision into the next year.

The proposed extension is excessive, but good cause exists to extend the schedule by approximately 30 days to allow the parties more time to review the documents, prepare for, and schedule depositions. Accordingly, it is **ORDERED** that the parties follow this amended schedule:

July 20, 2026	Complete depositions of fact witnesses
July 29, 2026	Disclosure of initial expert reports, if any
August 3, 2026	Last day to serve interrogatories, requests for admission, and requests for production of documents
August 20, 2026	Disclosure of rebuttal expert reports, if any
September 1, 2026	Complete expert depositions
September 1, 2026	Close of discovery
September 29, 2026	Complainant's Brief, proposed findings of fact, appendix due
October 27, 2026	Respondent's Opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due
November 10, 2026	Complaint's Reply Brief, response to Respondent's proposed findings of fact due

Rather than seeking further lengthy extensions, the parties are advised to stipulate to facts that are not in dispute and to narrow the issues between them. If a party will not meet a deadline established in this order, the time to raise that is before the scheduled deadline expires; the current motion was filed two weeks after the deadline for substantial production of documents was not met. Further requests to extend the schedule are not likely to be granted absent a detailed statement of why the deadline cannot be met, and what the parties have done to narrow the issues.

A recently issued Initial Decision in *20230930-DK-Butterfly-1, Inc. F/K/A Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Dkt. No. 23-02, 2026 WL 1285696 (ALJ April 24, 2026), addresses issues similar to some of those raised in the instant proceeding and may provide useful information to the parties regarding types and sufficiency of evidence, including use of expert reports, which may help the parties narrow the issues in this proceeding.



Linda S. Harris Crovella
Administrative Law Judge